

## 23BBCV01492 23BBCV01492

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Case Number: 23BBCV01492 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

### MOTION FOR SUMMARY JUDGMENT

Hearing Date: 9/18/26

CASE NO.: 23BBCV01492

CASE NAME: Leticia Garcia vs. Whole Foods Market California,  
Inc., et al.

Moving Party: Defendant Gatekeeper Systems, Inc.

Responding Party: Plaintiff Leticia Garcia and Defendant Schindler  
Elevator Corporation

Notice: Sufficient

Ruling: DENY.

### NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

## BACKGROUND

This is a negligence action. On July 4, 2021, plaintiff Leticia Garcia (Plaintiff) allegedly sustained an injury at a Whole Foods store when riding down an inclined moving walkway. On July 3, 2023, Plaintiff filed a complaint against defendants Whole Foods Market California Inc., Manager Blanca, and DOE Defendants 1-50 including defendant Gatekeeper Systems, Inc. (Defendant Gatekeeper) alleging general negligence.

On June 24, 2024, Defendant Schindler Elevator Corporation (Defendant Schindler) filed a Cross-Complaint against Defendant Gatekeeper, P&H Casters, and Glide Rite Corporation seeking Equitable Indemnity, Declaratory Relief, and Contribution.

On June 8, 2026, Defendant Gatekeeper filed the instant motion for summary judgment (Res ID: 3606) against Plaintiff as to the initial Complaint and Defendant Schindler as to the Cross-Complaint. On August 28, 2026, Defendant Schindler filed an opposition. On September 2, 2026, Defendant Gatekeeper filed a reply. Plaintiff has not filed an opposition as of September 16, 2026.

## LEGAL

### STANDARD

In reviewing a motion for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

“[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) When a plaintiff seeks summary judgment, the plaintiff must produce

admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-65.)

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar*, supra, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Ibid.*) “If the [non-moving party] cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037; *Aguilar*, supra, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may

the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]" (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

## DISCUSSION

### Summary Judgment on Complaint

#### Defendant Gatekeeper

seeks summary judgment against Plaintiff on the grounds that Plaintiff cannot establish negligence and cannot show breach or causation. (Mot., pp. 2-3.)

#### The Court

acknowledges that Defendant Gatekeeper references premises liability, however Defendant Gatekeeper is DOE 5, against whom Plaintiff does not assert premises liability. Thus, that argument is moot. (Mot., p. 3.)

#### In

order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

### Movant's Burden

#### Defendant

Gatekeeper argues that they only had limited involvement because they designed and manufactured one wheel on each shopping cart, the wheel locking component. (Mot., p. 10.) Defendant Gatekeeper argues the wheel was pre-installed by The Peggs Company before the carts arrived at the subject Whole Foods location, and carts with the pre-installed wheel were tested after delivery and before opening. (Ibid.) Further, Defendant Gatekeeper alleges that the subject cart was not preserved or turned over to them for inspection after the incident, so Plaintiff cannot establish any breach of causation involving the wheel. (Mot., pp. 10-11.) Additionally, Defendant Gatekeeper argues that Whole Foods stated it is not aware of any written agreement between them regarding the wheel locking mechanism and does not accuse Defendant Gatekeeper of being responsible for inspecting them.

(Mot., pp. 11.) Defendant Gatekeeper argues that Plaintiff cannot establish causation through speculation about a wheel on the subject shopping cart. (Mot., p. 20.)

Defendant

Gatekeeper presents discovery responses in support of their motion for summary judgment against Plaintiff. (See Compendium.)

Here,

Defendant Gatekeeper essentially argues that since the subject shopping cart has not been provided, Plaintiff cannot possibly establish Defendant Gatekeeper breached a duty tied to the wheel locking mechanism they admittedly designed and manufactured. (Greenberg Decl., ¶ 8.) The Court is not persuaded by Defendant Gatekeeper's argument. At this time triable issues of fact remain as to whether Defendant Gatekeeper's wheel was involved in the subject incident. Defendant Gatekeeper provides the deposition of Plaintiff in which Plaintiff states that the shopping cart caught a bump "at the bottom of the conveyor" to establish their wheel was not responsible. (Feldman Decl., ¶ 14, Ex. 12, Garcia Depo., p. 205.) However, Defendant Gatekeeper also provides Defendant Schindler's responses to special interrogatories in which they assert that the incident may have been caused by wheels on the shopping cart. (Feldman Decl., ¶ 7, Ex. 5, No. 21.) This contradiction in itself shows that a triable issue of fact remains. Thus, Defendant Gatekeeper has not met their burden.

Accordingly, the motion for summary judgment as to the initial Complaint is DENIED.

#### Summary Judgment on Cross Complaint

Defendant

Gatekeeper seeks summary judgment as to Defendant Schindler's entire cross-complaint on the grounds that it is derivative of the alleged tort liability to Plaintiff. (Mot., p. 24.)

"To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant." (Platt v. Coldwell Banker Residential Real Estate Services (1990) 217 Cal.App.3d 1439, 1445, fn.7.)

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A claim for contribution requires allegations of (1) “a money judgment,” (2) “rendered jointly against two or more defendants in a tort action,” (3) “in accordance with the principles of equity,” (4) “after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof,” (5) without intentional injury by the tortfeasor. (Code Civ. Proc., § 875, subds. (a)-(d).)

Defendant

Gatekeeper argues that these claims fail because they require an underlying liability, which they argue is absent. (Mot., p. 24.) Defendant Gatekeeper argues that because they had no involvement in Plaintiff’s injuries and no underlying liability, Defendant Schindler’s claims fail as a matter of law. (Mot., p. 26.)

As discussed

above, Defendant Gatekeeper has not established that they are completely absolved of liability to Plaintiff in the underlying Complaint. At this stage it would be premature to grant summary judgment because triable issues of fact remain as to liability for Plaintiff’s injuries.

Accordingly, the

motion for summary judgment as to the Cross-Complaint is DENIED.

CONCLUSION

AND ORDER

Defendant Gatekeeper

Systems, Inc.’s motion for summary judgment is DENIED.

MOVING PARTY

shall

provide notice.

## MOTION FOR SUMMARY JUDGMENT

Hearing Date: 9/18/26

CASE NO.: 23BBCV01492

CASE NAME: Leticia Garcia vs. Whole Foods Market California, Inc., et al.

Moving Party: Defendant Schindler Elevator Corp.

Responding Party: Plaintiff Leticia Garcia

Notice: Sufficient

Ruling:

DENY.

## BACKGROUND

This is a negligence action. On July 4, 2021, plaintiff Leticia Garcia (Plaintiff) allegedly sustained an injury at a Whole Foods store when riding down an inclined moving walkway. On July 3, 2023, Plaintiff filed a complaint against defendants Whole Foods Market California Inc., Manager Blanca, and DOE Defendants 1-50 including defendant Schindler Elevator Corporation (Defendant Schindler) alleging general negligence.

On July 29, 2026, Defendant Schindler filed the instant motion for summary judgment (Res ID: 1446). On August 28, 2026, Plaintiff filed an opposition. On September 4, 2026, Defendant Schindler filed a reply.

## EVIDENTIARY

### OBJECTIONS

With the opposition papers, Plaintiff submitted evidentiary objections to the evidence submitted in support of Defendant Schindler's motion. However, Plaintiff did not make any objections to evidence that was material to the Court's ruling. (CCP, § 437c, subd. (q).)

## LEGAL

### STANDARD

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“[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.”<sup>3</sup>(*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.)<sup>4</sup>When a plaintiff seeks summary judgment, the plaintiff must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-65.)<sup>5</sup>

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)<sup>6</sup>Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken.<sup>7</sup>(*Aguilar*, supra, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.”<sup>8</sup>(*Ibid.*)<sup>9</sup>“If the [non-moving party] cannot do so, summary judgment should be granted.”<sup>10</sup>(*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1037; Aguilar, supra, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

## DISCUSSION

### Defendant

Schindler seeks summary judgment against Plaintiff as to the cause of action for general negligence on the grounds that Plaintiff cannot establish breach or causation. (Mot., p. 4.)

### In

order to state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

### Movant’s Burden

### Defendant

Schindler argues that Plaintiff cannot prove that they breached their duty to maintain the walkway or that such breach caused her injuries. (Mot., p. 4.) Defendant Schindler concedes that its sole duty arises from its contractual

obligation to maintain the subject walkway but argues there is no evidence that Defendant Schindler breached this duty. (Mot., p. 5.) Defendant Schindler argues that they performed the required periodic routine maintenance, inspection, and repairs on the subject walkway and it had been deemed code compliant. (Ibid.) Defendant Schindler argues that since they sufficiently maintained the subject walkway, any allegation that failure to do so caused Plaintiff's injuries is unsupported. (Mot., p. 6.) Further, Defendant Schindler argues that Plaintiff's claim that they failed to warn Plaintiff of a dangerous condition fails because Defendant Schindler did not control the premises. (Ibid.) Defendant Schindler argues that it was the responsibility of Whole Foods Market to monitor the equipment and warn customers of potential safety hazards. (Mot., p. 7.)

Defendant

Schindler presents the last work report before the incident to show no repairs were completed because there was no indication of hazards. (Compendium Exh. E.) Further Defendant Schindler presents the deposition of Schindler representative Denis Davis to prove that Whole Foods Market did not reach out via work order and did not request any repairs due to shopping carts locking on the subject walkway. (Compendium, Exh. C.)

Here,

Defendant Schindler essentially argues that a service report reflecting a lack of repairs is definitive proof establishing they did not breach their duty to maintain the subject walkway. The Court has reviewed the service reports provided and finds that there is not sufficient information establishing a maintenance issue did not exist. The report prior to the date of injury, dated May 21, 2021, describes preventative maintenance being done in the form of a routine visual inspection of the equipment. (Compendium, Exh. E, p. 7.)

The Court is not

persuaded by Defendant Schindler's argument that because no repairs were done nearly two months prior to the incident, they could not have possibly breached their duty to maintain the subject walkway. At this time triable issues of fact remain as to whether a maintenance issue actually existed within the subject walkway. It is possible that Defendant Schindler's technician simply did not see it. Moreover, Defendant Schindler states they had an agreement in place with Whole Foods Market, imposing duty, which required them to make monthly maintenance visits. (Compendium, Exh. B, p. 20.) However, service reports

provided to the Court do not reflect maintenance being done on a monthly basis. (See Compendium Exh. E.) There is no report provided for April 2021, or more notably, June or July of 2021 just before the incident. (Id.) This inconsistency further calls into question whether Defendant Schindler breached their duty or not. As a result, triable issues of fact remain as to whether a possible lapse in maintenance caused Plaintiff's injury. Thus, Defendant Schindler has not met their burden.

Accordingly, the motion for summary judgment is DENIED.

#### CONCLUSION AND ORDER

Defendant Schindler Elevator Corp.'s motion for summary judgment is DENIED.

MOVING PARTY  
shall  
provide notice.